

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

TZ SSE BUYER, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*.

DOCKET NO. 24-07

Served: July 29, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

INITIAL DECISION DISMISSING COMPLAINT WITH APPROVED SETTLEMENT AGREEMENT¹

On June 3, 2025, Complainant TZ SSE Buyer, LLC (“TZ SSE Buyer”) and Respondent, CMA CGM S.A. (“CMA”) filed a Joint Motion for Approval and Confidential Treatment of Settlement Agreement and Release which requested that their confidential settlement agreement be approved but proposed an unusual two-step process for the ultimate disposition of the proceeding. Specifically, the parties proposed that their confidential settlement agreement first be approved, and then later that the proceeding be dismissed with prejudice upon the filing of a motion for dismissal by Complainant once the agreed upon settlement amount had been paid.

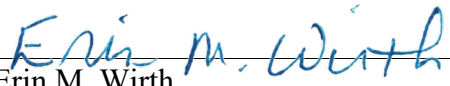
On June 11, 2025, an Order Granting Joint Motion for Approval of Settlement Agreement was issued. On June 18, 2025, a Corrected Order Granting Joint Motion for Approval of Settlement Agreement was issued. The substantive terms of the settlement agreement were approved and the parties were ordered to file a dismissal motion or joint status report by June 20, 2025. On June 23, 2025, an extension requested by the parties was granted and the deadline to file a dismissal motion was extended to July 21, 2025.

On July 18, 2025, TZ SSE Buyer filed a Motion to Dismiss the Proceeding with Prejudice (“Motion”) pursuant to the terms of the parties’ settlement agreement. The motion states that “Complainant agreed to dismiss its Verified Amended Complaint with prejudice upon receipt of the agreed settlement funds, which it has now received.” Motion at 1.

Upon consideration of the motion, the settlement agreement, and the record, and good cause having been stated, it is hereby:

¹ This initial decision will become the decision of the Commission in the absence of review by the Commission. Any party may file exceptions to this decision within twenty-two days of the date of service. 46 C.F.R. § 502.227.

ORDERED that Complainant's Motion to Dismiss the Verified Amended Complaint with Prejudice be **GRANTED**. The Verified Amended Complaint is hereby **DISMISSED WITH PREJUDICE**.


Erin M. Wirth
Chief Administrative Law Judge